

MUTUAL NON-DISCLOSURE AGREEMENT

This mutual non-disclosure agreement (this “**Agreement**”) is made as of 18 September, 2025 (the “**Effective Date**”) by and between Spray Products Corporation, having its office at 1323 Conshohocken Road, Plymouth Meeting, PA 19462, (hereinafter referred to as “**Spray**” which expression shall, where the context so admits, include its subsidiaries and affiliates) and the counterparty set forth on the signature page to this Agreement (hereinafter referred to as “**Brag & Bev LLC**” which expression shall, where the context so admits, include its successors and associates) (each, a “**Party**” and together, the “**Parties**”).

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration the receipt and sufficiency of which is hereby acknowledged, the Parties hereto hereby agree as follows.

SECTION 1. Definition of Confidential Information. “**Confidential Information**” means nonpublic information revealed by or through a Party (the “**Disclosing Party**”) to the other Party (the “**Recipient**”) including, without limitation, either directly or in writing, orally, electronically, on magnetic media, or by inspection of the physical business locations, equipment or tangible objects, including without limitation documents, products, prototypes, materials, samples, illustrations, drawings, diagrams, samples, research, formulas, technical know-how, processes, techniques, developments, tools and methodologies, patents, trademarks, copyrights, inventions, discoveries, designs, computer software code, industrial property rights, marketing plans and strategies, customers, business plans, profits, costs, pricing, financial data, tax returns, due diligence materials and information, procedures and all other information relating to the business of the Disclosing Party or its employees, suppliers, vendors, independent contractors, subcontractors or others with whom such Party transacts or proposes to transact business. Confidential Information shall also include information disclosed to either Party by third parties where such third party is subject to a confidentiality agreement with a Party that applies to such information. All of the foregoing information constitutes Confidential Information without regard to any labeling of such materials as confidential or other statement that such materials are confidential.

SECTION 2. Confidentiality. At all times the Recipient shall protect and preserve the Confidential Information as confidential, using no less care than that with which it protects and preserves its own highly confidential and proprietary information (but in no event less than a reasonable degree of care), and shall not use the Confidential Information for any purpose except to in connection with Spray providing services to Customer (the “**Purpose**”). The Recipient may disclose, distribute or disseminate the Confidential Information to any of its officers, directors, members, managers, partners, employees, agents or other persons (its “**Representatives**”) provided that the Recipient reasonably believes that those Representatives have a need to know and such Representatives are bound by confidentiality obligations at least as restrictive as those contained herein. The Recipient shall not disclose, distribute or disseminate the Confidential Information to any third party without the prior written consent of the Disclosing Party. If “**Brag & Bev LLC**” is permitted by Spray to disclose any Confidential Information of Spray to any other third party, including any business partner or purchaser in the supply chain who has a need to receive the Confidential Information in order to effectuate the Purpose, then such business partner, purchaser or third party shall be deemed a Representative of “**Brag & Bev LLC**” for purposes of this Agreement. The Recipient shall at all times remain responsible for any violations of this Agreement by any of its Representatives. Recipient will indemnify and defend the Disclosing Party all third-party claims resulting from the negligent or wrongful disclosure by the Recipient of the Disclosing Party’s Confidential Information.

SECTION 3. Return of Confidential Information. Promptly following the request of the Disclosing Party, the Recipient and its Representatives shall return to the Disclosing Party, or, at the Disclosing Party’s option, destroy all materials that are in written, electronic or other tangible form (including, without limitation, all written or printed documents, notes, memoranda, email, computer disks or tapes (whether machine or user readable), or computer memory, whether or not prepared by Recipient)

that contain, summarize or abstract any portion of the Confidential Information, including, without limitation, all copies, extracts and derivations of such materials. In addition, upon the request of the Disclosing Party, the Recipient shall certify to the Disclosing Party in writing the Recipient's and its Representatives' compliance with its obligations pursuant to this Section 3.

SECTION 4. Ownership of Confidential Information. The Recipient acknowledges and agrees that, as between the Recipient and the Disclosing Party, the Confidential Information, together with all intellectual property rights embodied therein (including, but not limited to, all patent rights, inventions (whether patentable or not), concepts, ideas, algorithms, formulae, processes, methods, techniques, copyrights, copyrightable works, trade secrets, know-how, and trademarks), are the sole and exclusive property of the Disclosing Party. The Disclosing Party shall retain all right and title to all proprietary rights in the Confidential Information and to any other intellectual property owned or otherwise provided by the Disclosing Party. The Recipient shall not have the right to use the intellectual property rights embodied in the Confidential Information for any purpose other than the Purpose. **"Brag & Bev LLC"** expressly agrees that (a) any protocol, software, algorithm, technique and/or methodology developed during its association with Spray shall be the property of Spray and **"Brag & Bev LLC"** shall not share or use such information with any other party without explicit permission of Spray; and (b) it shall not file any application for seeking intellectual property rights in its own name or in the name of its associates or any other person, and (c) it shall not oppose or direct or cause any person to oppose any application of Spray seeking intellectual property rights on any matter relating to the Confidential Information disclosed to it by Spray or any new information generated during the association, by Spray, or any information generated by **"Brag & Bev LLC"** after ceasing of the association which has direct impact on or is based, at least in parts, on the product, ideas or information disclosed by Spray to **"Brag & Bev LLC"**.

SECTION 5. Exclusions from the Definition of "Confidential Information." The term "Confidential Information" does not include information which: (a) is or becomes generally available to the public other than as a result of disclosure by the Recipient or its Representatives (or any person to whom the Recipient or its Representatives disclosed such information); (b) was known by the Recipient prior to its disclosure by the Disclosing Party; (c) was independently developed by Recipient without use of the Confidential Information; or (d) becomes available to the Recipient on a non-confidential basis from a source other than the Disclosing Party, provided that such source is not bound by a confidentiality agreement, confidentiality obligation or fiduciary duty which prohibits disclosure and the Recipient has no reason to believe that such source may be restricted from making such disclosure.

SECTION 6. Compelled Disclosure. In the event the Recipient becomes or may become legally compelled to disclose any Confidential Information (whether by deposition, interrogatory, request for documents, subpoena, civil investigative demand or other process or otherwise), the Recipient shall provide to the Disclosing Party, to the extent legally permissible, prompt prior written notice of such requirement so that the Disclosing Party may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Agreement. In the event that such protective order or other remedy is not obtained, or that the Disclosing Party waives compliance with the provisions hereof, the Recipient shall furnish only that portion of the Confidential Information which it is advised by counsel is legally required to be disclosed, and shall use its best efforts to insure that confidential treatment shall be afforded such disclosed portion of the Confidential Information.

SECTION 7. Specific Performance and Injunctive Relief. The Recipient acknowledges that in the event of a breach of this Agreement by the Recipient or its Representatives, substantial injury could result to the Disclosing Party and money damages will not be a sufficient remedy for such breach. Therefore, in the event that the Recipient or its Representatives engage in, or threaten to engage in any act which violates any provision of this Agreement, the Disclosing Party shall be entitled, in addition to all other remedies which may be available to it under law, to injunctive relief (including, without limitation,

temporary restraining orders, or preliminary or permanent injunctions) and specific enforcement of the terms of this Agreement. The Disclosing Party shall not be required to post a bond or other security in connection with the granting of any such relief.

SECTION 8. No Warranties; No License. The Confidential Information is provided “as is” and the Disclosing Party makes no representations or warranties, express or implied, with respect to the Confidential Information and shall have no liability to the Recipient or any other person or entity for any reliance upon the Confidential Information by the Recipient or such other person or entity. THE DISCLOSING PARTY SPECIFICALLY DISCLAIMS ALL WARRANTIES OF ANY KIND TO THE RECIPIENT, WHETHER EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, ALL IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT AND THOSE WARRANTIES ARISING FROM A COURSE OF PERFORMANCE, A COURSE OF DEALING OR TRADE USAGE. Nothing contained herein shall be construed, either expressly or implicitly, to grant to the Recipient any rights to technology or license under any patent, copyright, trademark or other intellectual property right, now or hereinafter in existence.

SECTION 9. Term and Termination. This Agreement will continue in effect until terminated by either Party upon thirty (30) days’ written notice. In the event of termination of this Agreement, the Recipient shall continue to hold the Confidential Information in strict confidence as set forth herein for five (5) years from the date of termination, except with regard to trade secrets of the Disclosing Party, which shall be held in confidence for as long as such information remains a trade secret.

SECTION 10. Governing Law; Jurisdiction and Venue. This Agreement, and all matters arising directly or indirectly from this Agreement, shall be governed by and construed in accordance with the laws of the Commonwealth of Pennsylvania, without regard to its conflict of laws rules applicable to contracts to be performed entirely within the Commonwealth of Pennsylvania.

SECTION 11. Attorney Fee Shifting. In the event that legal action becomes necessary for the enforcement of any of the provisions of this Agreement provided herein, the prevailing party shall receive in addition to any other damages or relief awarded, its reasonable attorney’s fees, together with appropriate costs and interest.

SECTION 12. Export. Each Recipient will adhere to all applicable laws and regulations of the U.S. Export Administration and will not export or re-export any technical data or products received from the Discloser, or the direct product of such technical data, to any proscribed person or country listed in the U.S. Export Administration regulations unless properly authorized by the U.S. government.

SECTION 13. Competition. The receipt of Confidential Information pursuant to this Agreement will not prevent or in anyway limit Recipient from: (a) developing, making and marketing products or services which may be competitive with products or services of the other party; (b) providing products or services to others who compete with the other party; or (c) assigning and reassigning its employees in any way that it may choose.

SECTION 14. Entire Agreement; No Assignment; Modification and Waiver. This Agreement constitutes the entire agreement of the Parties with respect to the subject matter hereof and supersedes any and all existing or prior agreements and communications, whether written or oral, relating to the subject matter hereof. No modification of this Agreement shall be effective unless it is in writing and signed by an authorized representative of each Party. Neither Party may assign or transfer all or any part of its rights or obligations under this Agreement without the prior written consent of the other Party. This Agreement shall inure to the benefit of, and be binding on, the Parties and their permitted successors and assigns. The failure of either Party to object to or to take affirmative action with respect to any conduct

of the other Party which is in violation of the terms hereof shall not be construed as a waiver thereof, nor of any subsequent breach or wrongful conduct.

SECTION 15. Severability. The illegality, invalidity, or unenforceability of such provision shall not in any manner affect or render illegal, invalid or unenforceable any other provision of this Agreement, and that provision, and this Agreement generally, shall be reformed, construed and enforced so as to most nearly give lawful effect to the intent of the parties as expressed in this Agreement.

SECTION 16. Counterparts. This Agreement may be executed in two (2) or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one (1) and the same instrument. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

IN WITNESS WHEREOF, the Parties have caused this Mutual Non-Disclosure Agreement to be executed by their duly authorized representatives as of the Effective Date.

Spray Products Corporation

BY: _____
(signature)

Name:

Title:

Address: _____

Email: _____

Brag & Bev LLC

BY:  _____
(signature)

Name: Jacob Bevier

Title: Co-Founder

Address: 105 Pendleton Trail

Tyrone, GA 30290

Email: bevier19jac@iclou.com